

The lack of support for the Court's view of the common law is evident in its reliance on *Thayer v. Boston*, 36 Mass. 511 (1837), as its principal authority. *Ante*, at 641-642. *Thayer* did hold broadly that a city could be liable for the authorized acts of its officers. 36 Mass., at 516. But *Thayer* was limited severely by later Massachusetts decisions. *Bigelow v. Inhabitants of Randolph*, 80 Mass. 541, 544-545 (1860), ruled that *Thayer* applied only to situations involving official malfeasance—or wrongful, bad-faith actions—not to actions based on neglect or nonfeasance. See *Child v. Boston*, 86 Mass. 41 (1862); *Buttrick v. Lowell*, 83 Mass. 172 (1861). Finally, *Hill v. Boston*, 122 Mass. 344, 359 (1877), squarely repudiated the broad holding of *Thayer* and limited municipal liability to acts performed in the proprietary interest of the municipality.¹⁹

qualified immunity for local governments. *Ante*, at 644-650. That absence, of course, was due to the availability of absolute immunity for governmental and discretionary acts. There is no justification for discovering strict municipal liability in § 1983 when that statute was enacted against a background of extensive municipal immunity.

The Court also points out that municipalities were subject to suit for some statutory violations and neglect of contractual obligations imposed by State or Federal Constitutions. *Ante*, at 639-640. That amenability to suit is simply irrelevant to the immunity available in tort actions, which controls the immunity available under § 1983.

¹⁹ The Court cites eight cases decided before 1871 as “reiterat[ing]” the principle announced in *Thayer* while awarding damages against municipalities for good-faith torts. Three of those cases involved the “special and peculiar” statutory liability of New England towns for highway maintenance, and are wholly irrelevant to the Court’s argument. *Billings v. Worcester*, 102 Mass. 329, 332-333 (1869); *Horton v. Inhabitants of Ipswich*, 66 Mass. 488, 491 (1853) (trial court “read to the jury the provisions of the statutes prescribing the duties of towns to keep roads safe . . . and giving a remedy for injuries received from defects in highways”); *Elliot v. Concord*, 27 N. H. 204 (1853) (citing similar statute); see 2 J. Dillon, *Law of Municipal Corporations* § 1000, pp. 1013-1015, and n. 2 (3d ed. 1881). A fourth case, *Town Council of Akron v. McComb*, 18 Ohio 229 (1849), concerned damages caused by street-grading, and was later expressly restricted to those facts. *Western College of Homeopathic*